

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
April 2, 2026
8:30 AM/1:30 PM

17. ZVISINEY MAGUWU SANCHEZ V. MILTON SANCHEZ

25FL0187

Petitioner filed a Request for Order (RFO) on February 2, 2026, seeking enforcement of the judgment as well as sale of the former marital residence. Respondent was personally served in accordance with Family Code section 215, as this is a post-judgment request for modification.

Respondent has not filed a Responsive Declaration.

Petitioner's request for Respondent to provide the LG Refrigerator is granted. Respondent is to deliver the LG Refrigerator to Petitioner on or before April 11, 2026. Respondent shall be responsible for the delivery and any costs associated with the delivery. If Respondent fails to deliver the LG refrigerator by April 11th, Respondent shall pay to Petitioner \$1,600 as and for the value of the refrigerator. Payment is due in full on April 15, 2026.

The home is Respondent's separate property. Petitioner has executed a quit claim deed. As such, any request for orders regarding title to the home are precluded as res judicata. The parties' judgment is silent as to the removal of Petitioner from the mortgage. The court no longer has jurisdiction to order the sale of the home. The request for an order to sell the home is denied. Petitioner may seek remedies in civil court.

Petitioner is directed to prepare the Findings and Orders After Hearing (FOAH); however this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #17: PETITIONER'S REQUEST FOR RESPONDENT TO PROVIDE THE LG REFRIGERATOR IS GRANTED. RESPONDENT IS TO DELIVER THE LG REFRIGERATOR TO PETITIONER ON OR BEFORE APRIL 11, 2026. RESPONDENT SHALL BE RESPONSIBLE FOR THE DELIVERY AND ANY COSTS ASSOCIATED WITH THE DELIVERY. IF RESPONDENT FAILS TO DELIVER THE LG REFRIGERATOR BY APRIL 11TH, RESPONDENT SHALL PAY TO PETITIONER \$1,600 AS AND FOR THE VALUE OF THE REFRIGERATOR. PAYMENT IS DUE IN FULL ON APRIL 15, 2026. THE REQUEST FOR THE SALE OF THE MARITAL RESIDENCE IS DENIED AS RES JUDICATA.

PETITIONER IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.

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NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO LEWIS V. SUPERIOR COURT*, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.